



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 15, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100434 regarding Police Officer Ryan Gaynor, Tax No. 953901 (DADS No. 2022-26429), and Inspector John Buttacavoli, Tax No. 918799 (DADS No. 2022-26430)

Dear Mr. Darche:

The CCRB substantiated one allegation of force against Police Officer Gaynor and one allegation of improper search against Inspector Buttacavoli. The CCRB recommended that both members of the service receive a Schedule B Command Discipline for their actions. However, after a review of the specific facts and circumstances in this matter, including video evidence, the Police Commissioner determined that the actions of both Inspector Buttacavoli and Police Officer Gaynor were proper and do not warrant a disciplinary penalty.

In this matter, Police Gaynor, and later Inspector Buttacavoli, responded to a residence where a male had been stabbed moments earlier. While at the residence, Police Officer Gaynor interacted with a highly intoxicated unidentified individual who had been escorted from the interior of the location where officers were conducting an investigation into the stabbing. Two other officers initially removed the same intoxicated individual from

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the residence after the intoxicated individual became loud and threatened one of the officers. Police Officer Gaynor assisted those officers by keeping the intoxicated individual away from the residence which was an active crime scene. Police Officer Gaynor's actions were appropriate and necessary in order to keep a highly intoxicated individual from interfering with an active investigation of a male stabbed.

After his arrival at the active crime scene, Inspector Buttacavoli was informed that a knife that may have been used in the stabbing was found in plain view on the upper floor of the residence. Inspector Buttacavoli performed a cursory search of the crime scene which, at that time, included both the upstairs and downstairs floors of the residence. It should be noted that Inspector Buttacavoli did not open any drawers or closed containers and did not rummage through any obviously protected areas; rather, he properly assessed an active crime scene by performing a cursory sweep of the residence. Thus, Inspector Buttacavoli's actions were proper and within the scope of his duties.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Gaynor and Inspector Buttacavoli will receive no disciplinary action.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in dark ink, appearing to read 'Lourdes Soto', is written over the printed name. The signature is stylized with a large loop at the end.

Lourdes Soto

Inspector

Commanding Officer
Police Commissioner's Office